



judges under the Umayyad dynasty from the 660s CE onward. They were aided in their deliberations by *muftis*, legal scholars who delivered *fatwas*, or opinions on matters of religious law.

Among the first matters to be determined was the precise status of the *sunna*, the body of social and legal practices that guided the Muslim way of life. Islamic law was often based on *hadith*, or sayings and actions of the Prophet, his family, and his companions, but these did not have the same status as the divine word of the Koran itself.

Guidance for judges

Legal scholars traced back the chain of transmission of these *hadith*, discarding those they discovered to be not well-founded. A popular compilation of *hadith* by the scholar al-Bukhari in the mid-9th century is said to have reduced them to a core group of 2,762.

Egyptian jurist al-Shafi (d. 820) detailed a process to help *qadis* navigate through this difficult terrain. He said they should first examine the Koran, and if the answer to the legal problem was not found there, then consider the *hadith*. If these did not cover

the matter or were found to be contradictory, a *qadi* was permitted to exercise *qiyas*, or the use of analogy, to find a similar circumstance that was dealt with in the Koran or a *hadith*. If even this was not enough, then it was permitted to seek *ijma*, or scholarly consensus, which required the examination of the opinion of legal scholars. The whole process of reason was known as *ijtihad*, which allowed for other considerations. These factors included *istishab* ("continuity"), by which if a matter had always been considered permissible (or forbidden), it continued to be so, and *maslahah* (public interest), through which the welfare of the community as a whole could be taken into account in a judicial decision.

In the 10th century, scholars began to rule that all the main legal issues had been determined and that, at most, analogy might be needed to decide new matters in the light of old decisions. Formal legal schools of *fiqh*—notably those founded by Abu Hanifa, Malik ibn Anas, al-Shafi, and Ibn Hanbal—gave rise to the Hanifi, Maliki, Shafi, and Hanbali judicial schools, which are still the most important for Muslims

A 9th-century Kufic manuscript of a section of the Koran on parchment. Kufic calligraphy is the oldest Arabic script and was the main script used for early copies of the Koran.

today. The Islamic community had split in the 7th and 8th centuries over the question of the succession to Muhammad. The majority Sunni group adhered to the five caliphs, or heads of Islamic communities, who had followed the Prophet and then their Abbasid and Umayyad successors. The minority Shia held that the leadership should have gone through the line of Ali, Muhammad's son-in-law. As well as minor differences in ritual, the Shia have their own jurisprudence schools, such as the Zaidi and Jafari, which lend more weight to the independent reasoning of the religious hierarchy (such as Iran's ayatollahs) than the *taqlid* ("imitation") of past decisions, which became more predominant in the Sunni schools.

Crime and the law

Islamic law differentiates between matters that are compulsory (*fard*), recommended (*mandub*), neutral (*mubah*), reprehensible (*makruh*),

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Whoever treads a path seeking knowledge, Allah will make easy for him the path to Paradise.

Ibn Majah

Compiler of *hadith* in
9th-century Iran (824–c.887)

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